



**REGULAR CITY COUNCIL MEETING
CITY COUNCIL CHAMBERS - INTERIM CITY HALL
MONDAY, JANUARY 14, 2013 – 7:00 P.M.**

MINUTES

- A. CALL TO ORDER** **President Chris Kaufman**
- B. INVOCATION** **Boy Scouts of America, Scout Chandler Johnson**
- C. PLEDGE OF ALLEGIANCE**
- D. ROLL CALL**

Council Members Present: Sandy Daff, Chris Kaufman, Eva Montoya, Ami Nawrocki, Steve Nawrocki and Chris Nicoll

Administrative Staff Members Present: City Manager Sam Azad, Interim Deputy City Manager Jenny Eickelman, City Attorney Dan Kogovsek and City Clerk Gina Dutcher

President Kaufman thanked everyone for their support during 2012 and stated he was honored to represent the City Council as President. He reviewed a listing of accomplishments and many challenges and tough decisions that were handled by the Council during 2012.

E. ELECTION OF PRESIDENT AND VICE-PRESIDENT OF COUNCIL FOR 2013

Mr. Nicoll, seconded by Ms. Daff moved to suspend the Legislative Procedures and Rules of Council and waive the requirement for a secret ballot for the election of President and Vice-President for the year 2013.

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

Mr. Nicoll, seconded by Mrs. Montoya nominated Councilman Steve Nawrocki for President of the City Council for the Year 2013.

With no other nominations being expressed, President Kaufman closed the nominations.

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

PRESIDENT STEVE NAWROCKI ASSUMES THE PRESIDENCY

President Nawrocki expressed thanks and appreciation for the confidence placed in him by the City Council. He thanked Mr. Kaufman for his leadership and his ability to maintain civility among the Council throughout 2012. President Nawrocki stated Mr. Kaufman's Presidency will be a "hard act to follow." Mr. Nawrocki reviewed the tasks and goals for the Council for 2013, specifically economic development and job creation as a number one priority.

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ELECTION OF VICE-PRESIDENT

Mrs. Nawrocki, seconded by Mrs. Montoya nominated Councilman Nicoll for Vice President of the City Council for the Year 2013.

With no other nominations being expressed, President Nawrocki closed the nominations.

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

PRESIDENT NAWROCKI APPOINTS AN EXECUTIVE COMMITTEE CHAIRPERSON

President Nawrocki reappointed Councilwoman Daff as the Executive Committee Chairperson for the Year 2013 and thanked her for doing an excellent job in 2012.

F. PUBLIC FORUM

There was no one present wishing to speak.

G. SPECIAL RECOGNITIONS

Councilman Kaufman announced that Paul Welch, Accounting Technician IV in the Department of Finance/Sales Tax Division has been selected as the 2012 Employee of the Year. Paul was recognized for consistently meeting all challenges with a willingness to be regarded as a team player and doing what needs to be done to get the work done. He is kind, caring, and courteous and can brighten a bad day with his positive attitude and smile and he exercises a work ethic that is admired by everyone on the Sales Tax Team, fellow City employees, and the business community at large. Paul was presented with an engraved plaque, a \$200 cash award, and an additional Personal Holiday from the City Council.

H. COUNCIL MEMBER COMMENTARY

Council members expressed comments in regard to community-related issues and events.

I. REVIEW AND APPROVAL OF AGENDA

A brief review of the agenda was held. Councilman Kaufman asked that item M-1 be moved from the Consent Agenda to the Regular Agenda to allow for a Staff Report, and postpone item Q-1 until February 11, 2013 to allow for additional staff review.

Mr. Kaufman, seconded by Ms. Daff moved to move item M-1 to the Regular agenda and postpone item Q-1 until February 11, 2013 and approve the agenda as amended.

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

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J. READING AND APPROVAL OF MINUTES

Ms. Daff, seconded by Mrs. Nawrocki moved to dispense with the reading and approve the minutes of the Regular Meeting dated **Wednesday, December 26, 2012**, as distributed.

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

K. CONSENT AGENDA

City Clerk Gina Dutcher read the Consent Agenda into the record.

L. COMMUNICATIONS

There were no Communication Items submitted.

M. RESOLUTIONS

- M-1 A RESOLUTION TRANSFERRING FUNDS IN THE AMOUNT OF \$140,000 FROM PROJECT PL1107, CITY HALL RENOVATION PHASE II, TO PL0904, CITY HALL INTERIOR RENOVATION, AND AUTHORIZING EXPENDITURE THEREOF FOR CITY HALL INTERIOR RENOVATION PHASE I-A – MOVED TO THE REGULAR AGENDA**
- M-2 RESOLUTION NO. 12569 DESIGNATING A PUBLIC PLACE FOR THE POSTING OF NOTICES OF MEETINGS FOR THE YEAR 2013**
- M-3 RESOLUTION NO. 12570 FIXING AN ALTERNATIVE DAY FOR THE REGULAR CITY COUNCIL MEETINGS CURRENTLY SCHEDULED FOR THE FOURTH MONDAY IN MAY AND THE SECOND MONDAY IN OCTOBER 2013**
- M-4 RESOLUTION NO. 12571 AUTHORIZING THE ISSUANCE OF A REVOCABLE PERMIT TO POCO BUENO, LLC FOR THE USE OF THE RIGHT-OF-WAY LOCATED AT 3504 NORTH ELIZABETH FOR THE PURPOSE OF INSTALLING A STORM SEWER DISCHARGE LINE AND PARKING LOT**
- M-5 RESOLUTION NO. 12572 APPOINTING MEMBERS TO THE HISTORIC PRESERVATION COMMISSION (LAUREL B. CAMPBELL AND KRISTI ALFONSO)**
- M-6 RESOLUTION NO. 12573 APPROVING THE PUEBLO URBAN RENEWAL AUTHORITY'S AMENDED 2012 MEMORIAL HALL RENOVATION BUDGET, THE 2013 MEMORIAL HALL RENOVATION BUDGET, AND THE 2013 PUEBLO CONVENTION CENTER OPERATING AND CAPITAL BUDGET**

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N. ORDINANCES – FIRST PRESENTATION

- N-1 AN ORDINANCE ESTABLISHING THE ARKANSAS RIVER HABITAT PROJECT, PHASE 2, CAPITAL IMPROVEMENT PROJECT NO. PL1301, BUDGETING AND APPROPRIATING \$336,100 FOR SAID PROJECT, APPROVING A GRANT AGREEMENT BETWEEN THE CITY OF PUEBLO, A MUNICIPAL CORPORATION, AND THE COLORADO DEPARTMENT OF NATURAL RESOURCES, DIVISION OF PARKS AND WILDLIFE, AND AUTHORIZING THE PRESIDENT OF COUNCIL TO EXECUTE SAME – *was submitted for First Presentation***

Public Hearing was set for Monday, January 28, 2013 and Notice of Hearing was ordered published **BY TITLE**

- N-2 AN ORDINANCE BUDGETING AND APPROPRIATING FUNDS IN THE AMOUNT OF \$162,416 FOR THE REPLACEMENT AND PURCHASE OF PUBLIC SAFETY DISPATCHING EQUIPMENT, USER LICENSES, UPGRADE OF E911 SOFTWARE, AND FOR FUNDING A 24/7 CONTRACT WITH CENTURY LINK FOR THE MAINTENANCE OF THE CITY'S E911 TELEPHONE SYSTEM – *was submitted for First Presentation***

Public Hearing was set for Monday, January 28, 2013 and Notice of Hearing was ordered published **BY TITLE**

- N-3 AN ORDINANCE BUDGETING, APPROPRIATING, AND AUTHORIZING THE TRANSFER OF \$65,000 FROM PROJECT NO. HUAN01 – STREET RESURFACING, TO PROJECT NO. HUAN03 – CROSS PAN/CURB AND GUTTER – *was submitted for First Presentation***

Public Hearing was set for Monday, January 28, 2013 and Notice of Hearing was ordered published **BY TITLE**

- N-4 AN ORDINANCE APPROVING A GRANT AGREEMENT BETWEEN THE CITY OF PUEBLO, A MUNICIPAL CORPORATION, AND THE GATES FAMILY FOUNDATION, BUDGETING AND APPROPRIATING FUNDS IN THE AMOUNT OF \$50,000 TO PROJECT PL1204, MEMORIAL HALL ENHANCEMENTS, APPROVING THE THIRD AMENDMENT TO THE DESIGN AND CONSTRUCTION AGREEMENT BETWEEN THE CITY AND THE PUEBLO URBAN RENEWAL AUTHORITY, AND AUTHORIZING THE PRESIDENT OF COUNCIL TO EXECUTE SAME – *was submitted for First Presentation***

Public Hearing was set for Monday, January 28, 2013 and Notice of Hearing was ordered published **BY TITLE**

- N-5 AN ORDINANCE APPROVING AN AGREEMENT BETWEEN PUEBLO SCHOOL DISTRICT 60, DBA PUEBLO CITY SCHOOLS, AND THE CITY OF PUEBLO FOR THE SCHOOL RESOURCE OFFICER PROGRAM DURING THE PERIOD OF JANUARY 1 THROUGH DECEMBER 31, 2013 AND AUTHORIZING THE PRESIDENT OF CITY COUNCIL TO EXECUTE SAME – *was submitted for First Presentation***

Public Hearing was set for Monday, January 28, 2013 and Notice of Hearing was ordered published **BY TITLE**

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O. *Consent Agenda Roll Call and Vote:*

Mrs. Nawrocki, seconded by Mr. Kaufman moved to Approve All Resolutions set forth in the Consent Agenda, Pass the Ordinances of the Consent Agenda on First Presentation, Set the Public Hearings for **Monday, January 28, 2013**, and order Ordinances of the Consent Agenda to be published **BY TITLE**.

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

P. REGULAR AGENDA

Q. RESOLUTIONS

M-1 MOVED FROM CONSENT AGENDA

RESOLUTION NO. 12574 TRANSFERRING FUNDS IN THE AMOUNT OF \$140,000 FROM PROJECT PL1107, CITY HALL RENOVATION PHASE II, TO PL0904, CITY HALL INTERIOR RENOVATION, AND AUTHORIZING EXPENDITURE THEREOF FOR CITY HALL INTERIOR RENOVATION PHASE I-A

STAFF REPORT:

A staff report and detailed review of the Resolution was given by Earl Wilkinson, Director of Public Works

Mr. Kaufman, seconded by Mr. Nicoll moved to approve the Resolution

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

Q-1 A RESOLUTION AUTHORIZING THE ISSUANCE OF A REVOCABLE PERMIT TO PUEBLO DOWNTOWN ASSOCIATION, FOR THE USE OF THE PUBLIC RIGHT-OF-WAY AT VARIOUS LOCATIONS THROUGHOUT THE DOWNTOWN PUEBLO AREA FOR THE PLACEMENT OF DECORATIVE BANNERS – RESOLUTION WAS POSTPONED TO FEBRUARY 11, 2013

Q-2 RESOLUTION NO. 12575 APPROVING THE AGREEMENT BETWEEN PUEBLO, A MUNICIPAL CORPORATION, AND PUEBLO DEVELOPMENT FOUNDATION RELATING TO A JOB CREATING CAPITAL IMPROVEMENT PROJECT, AUTHORIZING THE PRESIDENT OF THE CITY COUNCIL TO EXECUTE SAID AGREEMENT AND TRANSFERRING \$445,809 FROM THE 1992-2016 SALES AND USE TAX CAPITAL IMPROVEMENT PROJECTS FUND THEREFOR

Mr. Kaufman, seconded by Ms. Daff moved to approve the Resolution

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

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Q. RESOLUTIONS (Continued)

- Q-3 RESOLUTION NO. 12576 APPROVING THE AGREEMENT BETWEEN PUEBLO, A MUNICIPAL CORPORATION, AND WESTWIND WOOD SPECIALTIES, INC. AND THE PUEBLO DEVELOPMENT FOUNDATION RELATING TO A JOB CREATING CAPITAL IMPROVEMENT PROJECT, AUTHORIZING THE PRESIDENT OF THE CITY COUNCIL TO EXECUTE SAID AGREEMENT, AND TRANSFERRING \$100,000 FROM THE 1992-2016 SALES AND USE TAX CAPITAL IMPROVEMENT PROJECTS FUND THEREFOR**

Ms. Daff, seconded by Mrs. Montoya moved to approve the Resolution

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

R. ORDINANCES – FINAL PRESENTATION

- R-1 ORDINANCE NO. 8559 AMENDING APPROPRIATIONS AND COMPILING PREVIOUS AMENDMENTS TO THE GENERAL FUND, SPECIAL REVENUE FUNDS, ENTERPRISE FUNDS, INTERNAL SERVICE FUNDS, DEBT SERVICE FUNDS, AND CAPITAL PROJECT FUNDS FOR THE FISCAL YEAR 2012 AND AMENDING THE BUDGET FOR THE YEAR 2012 – *was submitted for Final Presentation***

STAFF REPORT:

A staff report and detailed review of the Ordinance was given by Mr. Azad and Deborah Morton, Interim Director of Finance

PUBLIC HEARING:

Seeing no one wishing to speak, President Nawrocki declared the Hearing closed.

Ms. Daff, seconded by Mr. Nicoll moved to approve the Ordinance on Final Presentation

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

- R-2 ORDINANCE NO. 8560 APPROVING AND ACCEPTING A DONATION AND APPLICABLE CONDITIONS PERTAINING THERETO FROM EVRAZ ROCKY MOUNTAIN STEEL AS A RESULT OF A COMPLIANCE ORDER ON CONSENT ISSUED BY THE COLORADO DEPARTMENT OF PUBLIC HEALTH AND ENVIRONMENT, ESTABLISHING PROJECT NO. PD1302 AND BUDGETING AND APPROPRIATING FUNDS IN THE AMOUNT OF \$37,500 – *was submitted for Final Presentation***

STAFF REPORT:

A staff report and detailed review of the Ordinance was given by Fire Chief Chris Riley

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R. ORDINANCES – FINAL PRESENTATION (Continued)

R-2 PUBLIC HEARING:

Seeing no one wishing to speak, President Nawrocki declared the Hearing closed.

Mr. Kaufman, seconded by Mrs. Montoya moved to approve the Ordinance on Final Presentation

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

R-3 ORDINANCE NO. 8561 BUDGETING AND APPROPRIATING FUNDS IN THE AMOUNT OF \$36,000 FROM THE FISCAL YEAR 2013 RESERVES OF THE PARKING FACILITIES ENTERPRISE FOR THE REPAIRS TO THE FRED E. WEISBROD PARKING GARAGE – *was submitted for Final Presentation*

STAFF REPORT:

A staff report and detailed review of the Ordinance was given by Mr. Wilkinson

PUBLIC HEARING:

Seeing no one wishing to speak, President Nawrocki declared the Hearing closed.

Mr. Nicoll, seconded by Mrs. Montoya moved to approve the Ordinance on Final Presentation

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

R-4 ORDINANCE NO. 8562 APPROVING A CONTRACT, M086-061 (18698) BETWEEN THE COLORADO DEPARTMENT OF TRANSPORTATION AND THE CITY OF PUEBLO, A MUNICIPAL CORPORATION, BUDGETING AND APPROPRIATING FUNDS IN THE TOTAL AMOUNT OF \$20,000, ESTABLISHING CAPITAL PROJECT NO. DT1301 FOR THE GREYHOUND SHELTER PROJECT, AND AUTHORIZING THE PRESIDENT OF CITY COUNCIL TO EXECUTE SAID CONTRACT – *was submitted for Final Presentation*

STAFF REPORT:

A staff report and detailed review of the Ordinance was given by Mr. Wilkinson

PUBLIC HEARING:

Seeing no one wishing to speak, President Nawrocki declared the Hearing closed.

Mrs. Montoya, seconded by Mr. Nicoll moved to approve the Ordinance on Final Presentation

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

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R. ORDINANCES – FINAL PRESENTATION (Continued)

R-5 ORDINANCE NO. 8563 AMENDING CHAPTER 12 OF TITLE XVI OF THE PUEBLO MUNICIPAL CODE RELATING TO AND INCREASING STORMWATER UTILITY SERVICE CHARGES THEREOF – *was submitted for Final Presentation*

STAFF REPORT:

A staff report and detailed review of the Ordinance was given by Mr. Wilkinson

PUBLIC HEARING:

Mary Ann Miklich was sworn in and stated she feels this fee is really a tax and should be approved by the people. She asked Council to conduct an audit of the department and justify the need for the 20% increase.

Seeing no one wishing to speak, President Nawrocki declared the Hearing closed.

Mr. Kaufman, seconded by Ms. Daff moved to approve the Ordinance on Final Presentation

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.

ADJOURN: 8:35 p.m. President Nawrocki declared the meeting adjourned.

Respectfully submitted,

A handwritten signature in black ink that reads "Gina Dutcher". The signature is fluid and cursive, with the first name "Gina" and last name "Dutcher" clearly distinguishable.

Gina Dutcher, MMC
City Clerk

EXECUTIVE SESSION:

Mr. Kaufman, seconded by Ms. Daff moved to reconvene into executive session.

Roll Call -- Ayes: Daff, Kaufman, Montoya, A. Nawrocki, S. Nawrocki and Nicoll. Motion carried unanimously.